

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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LUIS COLARTE,

Plaintiff,

- against -

09 CV 334 (NGG) (MDG)

AMENDED
COMPLAINT AND
JURY TRIAL DEMAND

P.O. KEITH DOUMAS, Shield No. 21013,
P.O. RICHARD FRANGIPANE, Tax No. 922372,
P.O. JOHN MALONEY, Tax No. 930638, P.O.
DANIEL DIPIAZZA, Tax No. 906117, P.O.
MELIZA MEADE, Tax No. 933989, P.O.
MICHAEL PRIOLEAU, Tax No. 933206, P.O.
ANGIE COLON, Tax No. 928099, DETECTIVE
RONALD AGUNZO, Tax No. 902676,
SERGEANT RONALD MARTI, Tax No. 897971,
SERGEANT DANIELLE RAIA, Tax No. 924370,
LIEUTENANT ROBERT SEAMEN, Tax No.
907311, CAPTAIN JOHN HALL, Tax No. 877764
and THE CITY OF NEW YORK,

Defendants.
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Plaintiff, LUIS COLARTE, by his attorney, ALAN D. LEVINE, ESQ., complaining
of the defendants herein, respectfully alleges as follows:

JURISDICTION

1. This is a civil action, seeking compensatory damages, punitive damages and attorney's fees.
2. This action is brought pursuant to 42 U.S.C. §§1983 and 1988 and the fourth and fourteenth amendments to the Constitution of the United States.
3. Jurisdiction is founded upon 28 U.S.C. §§1331, 1343 and 1367.

4. Plaintiff, invoking the pendent jurisdiction of this Court, also seeks compensatory and punitive damages for false arrest, malicious prosecution and damage to property.

VENUE

5. Venue is properly alleged in the Eastern District of New York in that the acts complained of herein occurred within this District.

JURY TRIAL DEMAND

6. Plaintiff hereby demands a trial by jury of all issues in this action that are so triable.

PARTIES

7. At all times relevant hereto plaintiff, LUIS COLARTE, was and is a natural person, resident in the County of Queens, City and State of New York.

8. At all times relevant hereto defendant P.O. KEITH DOUMAS (hereinafter "DOUMAS") was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

9. At all times relevant hereto defendant P.O. RICHARD FRANGIPANE, Tax No. 922372, was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

10. At all times relevant hereto defendant P.O. JOHN MALONEY, Tax No. 930638, was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

11. At all times relevant hereto defendant P.O. DANIEL DiPIAZZA, Tax No. 906117, was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

12. At all times relevant hereto defendant P.O. MELIZA MEADE, Tax No. 933989, was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

13. At all times relevant hereto defendant P.O. MICHAEL PRIOLEAU, Tax No. 933206, was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

14. At all times relevant hereto defendant P.O. ANGIE COLON, Tax No. 928099, was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

15. At all times relevant hereto defendant DETECTIVE RONALD AGUNZO, Tax No. 902676, was and is a natural person, employed as a detective by the Police Department of defendant CITY OF NEW YORK.

16. At all times relevant hereto defendant SERGEANT RONALD MARTI, Tax No. 897971, was and is a natural person, employed as a sergeant by the Police Department of defendant CITY OF NEW YORK.

17. At all times relevant hereto defendant SERGEANT DANIELLE RAI, Tax No. 924370, was and is a natural person, employed as a sergeant by the Police Department of defendant CITY OF NEW YORK.

18. At all times relevant hereto defendant LIEUTENANT ROBERT SEAMEN, Tax No. 907311, was and is a natural person, employed as a police officer by the Police Department of defendant CITY OF NEW YORK.

19. At all times relevant hereto defendant CAPTAIN JOHN HALL, Tax No. 877764, was and is a natural person, employed as a captain by the Police Department of defendant CITY OF NEW YORK.

20. At all times relevant hereto defendant CITY OF NEW YORK was and is a municipal corporation, organized and existing pursuant to the laws of the State of New York.

21. On or about February 22, 2008, this date being within ninety (90) days after the claims herein sued upon accrued, plaintiff served upon the Comptroller of the City of New York a verified written notice of claim setting forth the time, place, nature and manner in which said claim arose.

22. More than thirty (30) days have elapsed since the aforesaid verified notice of claim was served and the Comptroller has neglected and refused to make payment of said claim.

23. This action is commenced within one year and ninety days from the date the pendent claims herein accrued.

24. The individual defendants are sued in both their individual and official capacities.

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
(42 U.S.C. §1983)

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "24" hereinabove as if more fully set forth at length herein.

26. At all times relevant hereto, plaintiff resided in a legal two-family residence located at 95-17 97th Street, Ozone Park (hereinafter "subject premises"), County of Queens, City and State of New York.

27. At all times relevant hereto, plaintiff lived by himself in the first-floor apartment at the subject premises.

28. At all times relevant hereto, plaintiff's mother resided in the second-floor apartment at the subject premises.

29. There is no interior access between the first and second-floor apartments of the subject premises.

30. Each apartment has its own entrance from outside of the subject premises.

31. On or about November 1, 2007, at approximately 7:10 A.M., plaintiff heard a banging at his front door.

32. Before plaintiff could reach the front door, it had been broken and six of the individual defendants to this action had entered his home, all of them with their weapons out.

33. One or more of the individual defendants threw plaintiff to the floor and rear handcuffed him.

34. One of the individual defendants stated to plaintiff, "We have a warrant for your arrest. Where's the gun?"

35. Plaintiff replied "Warrant for what? What gun?"

36. One or more of the individual defendants took plaintiff outside the subject premises and put him in a van.

37. Plaintiff was driven to the stationhouse of the 102nd Precinct.

38. On his way to the precinct, plaintiff asked to be shown the warrant that he had been told existed.

39. A warrant was not shown to plaintiff, despite his request.

40. Inside the stationhouse of the 102nd Precinct, defendant DOUMAS, who was the arresting officer, accused plaintiff of owning a silver .38 caliber revolver with its serial number removed.

41. Plaintiff was taken to Central Booking Queens.

42. While he was in a holding cell in Central Booking Queens, plaintiff's attorney informed him that he was now being accused of being in possession of a .32 caliber revolver.

43. Plaintiff appeared before a Judge of the Criminal Court of the City of New York, County of Queens, where he learned that he was accused of two felonies, namely criminal possession of a weapon in the third degree and criminal possession of a weapon in the fourth degree.

44. The aforementioned Judge set bail of \$50,000.00 on plaintiff.

45. As plaintiff could not make his bail, he was incarcerated in a New York City Department of Correction facility.

46. Plaintiff insisted on appearing before the Queens County Grand Jury.

47. Plaintiff was held in custody until he appeared before the Queens County Grand Jury.

48. After plaintiff testified at the Queens County Grand Jury, the Grand Jury voted not to indict him.

49. Plaintiff was released from custody on January 22, 2008, having served a total of eighty-three days in custody.

50. When plaintiff returned home, he saw that as a result of the individual defendants' destructiveness in conducting a search of his apartment, his bedroom furniture had been trashed, the front door to his apartment had been destroyed, a cinder block that had been in the yard of the subject premises had been thrown into his apartment, resulting in a worm infestation and \$800.00 in United States currency was missing.

51. While he was incarcerated, plaintiff learned that before the raid on, and search of, his apartment, the individual defendants had raided and searched his mother's apartment.

52. The affidavit for the search warrant sworn to on October 25, 2007, and the search warrant based upon it, issued on October 25, 2007, were unconstitutionally overbroad in that they failed to specify that there were two apartments in the subject premises and that plaintiff resided in the apartment located on the first floor.

53. The individual defendants violated plaintiff's right to be free from unreasonable searches and seizures, and to the due process of law guaranteed to him, respectively, by the fourth and fourteenth amendments to the Constitution of the United

States in that, acting under color of state law, they, without any probable cause or justification therefor, obtained, and searched his home with, a defective search warrant, falsely placed him under arrest, falsely imprisoned him and maliciously prosecuted him.

54. By reason of the aforesaid acts committed by the individual defendants hereto, plaintiff suffered a deprivation of the right to be free of unreasonable searches and seizures and to the due process of law, guaranteed to him, respectively, by the fourth and fourteenth amendments to the Constitution of the United States and, as a result, suffered a loss of his liberty, suffered great physical and mental stress and anguish, suffered a loss of, and damage to, his personal property and was compelled to defend himself in a criminal proceeding.

55. By reason of the unconstitutional and illegal actions taken against plaintiff by the individual defendants, plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages against the individual defendants.

**AS AND FOR A SECOND CAUSE OF
ACTION AGAINST DEFENDANT DOUMAS
AND THE CITY OF NEW YORK
(False Arrest)**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "55" hereinabove as if more fully set forth at length herein.

57. On or about November 1, 2007, at approximately 7:10 A.M., at the first-floor apartment located at 96-17 97th Street, Ozone Park, County of Queens, City and State of New York, defendant DOUMAS, without probable cause, forcibly, wrongfully

and unlawfully arrested plaintiff and, against plaintiff's own free will, caused plaintiff to be incarcerated for eighty-three days.

58. Defendant DOUMAS falsely, maliciously, wrongfully, unlawfully and illegally accused plaintiff of having committed the crimes of criminal possession of a weapon in the third degree and criminal possession of a weapon in the fourth degree.

59. Plaintiff was illegally, falsely, maliciously, wrongfully and unlawfully kept in confinement at the stationhouse of the 102nd Precinct, Queens Central Booking, and one or more facilities operated by the New York City Department of Correction.

60. At the time he committed the aforesaid acts of false arrest and false imprisonment, defendant DOUMAS was acting within the scope of his employment by defendant CITY OF NEW YORK.

61. By reason of the false arrest and false imprisonment committed against him by defendant DOUMAS, while he was acting within the scope of his employment by defendant CITY OF NEW YORK, plaintiff was incarcerated for eighty-three days, and, as a result, was deprived of his liberty, suffered great physical and mental stress and anguish and was compelled to defend himself in a criminal proceeding.

62. As a result of the false arrest and false imprisonment committed against plaintiff by defendant DOUMAS, while he was acting within the scope of his employment by defendant CITY OF NEW YORK, plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$,000,000.00) Dollars as punitive damages from defendant DOUMAS.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST
DEFENDANT DOUMAS AND THE CITY OF NEW YORK**
(Malicious Prosecution)

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "62" hereinabove as if more fully set forth at length herein.

64. On or about November 1, 2007, at approximately 7:10 A.M., defendant DOUMAS maliciously caused a criminal prosecution to be commenced against plaintiff by his act of falsely and maliciously arresting him and charging him with the crimes of criminal possession of a weapon in the third degree and criminal possession of a weapon in the fourth degree.

65. Defendant DOUMAS was without probable cause to arrest plaintiff for the crimes he charged him with.

66. On or about January 22, 2008, all charges against plaintiff were dismissed by the Queens County Grand Jury.

67. At the time defendant DOUMAS falsely and maliciously caused the aforesaid prosecution to be commenced against plaintiff, he was acting within the scope of his employment by defendant CITY OF NEW YORK.

68. By reason of the prosecution maliciously commenced against plaintiff by defendant DOUMAS, while he was acting within the scope of his employment by defendant CITY OF NEW YORK, plaintiff was deprived of his liberty, suffered great physical and mental stress and anguish and was compelled to defend himself in a criminal proceeding.

69. As a result of the prosecution maliciously commenced against plaintiff by defendant DOUMAS, while he was acting within the scope of his employment by defendant CITY OF NEW YORK, plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages from defendant DOUMAS.

**AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS and
THE CITY OF NEW YORK
(Property Damage)**

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "69" hereinabove as if more fully set forth at length herein.

71. On or about November 1, 2007, commencing at approximately 7:10 A.M., at the first-floor apartment located at 95-17 97th Street, Ozone Park, County of Queens, City and State of New York, the individual defendants to this action intentionally and recklessly caused damage to and loss of plaintiff's personal property, when they, without any cause, provocation or justification therefor, trashed his bedroom, destroyed his front door, threw a cinder block into the premises that caused a worm infestation and took \$800.00 in United States currency that belonged to plaintiff.

72. At the aforesaid time and place, the individual defendants were acting within the scope of their employment by defendant CITY OF NEW YORK.

73. By reason of the aforementioned damage to and loss of his property, committed by the individual defendants, while they were acting within the scope of their employment by defendant CITY OF NEW YORK, plaintiff has been damaged in the sum of Seven Thousand Five Hundred (\$7,500.00) Dollars and demands recovery therefor.

WHEREFORE, plaintiff, LUIS COLARTE, demands judgment against defendants, P.O. KEITH DOUMAS, Shield No. 21013, P.O. RICHARD FRANGIPANE, Tax No. 922372, P.O. JOHN MALONEY, Tax No. 930638, P.O. DANIEL DIPIAZZA, Tax No. 906117, P.O. MELIZA MEADE, Tax No. 933989, P.O. MICHAEL PRIOLEAU, Tax No. 933206, P.O. ANGIE COLON, Tax No. 928099, DETECTIVE RONALD AGUNZO, Tax No. 902676, SERGEANT RONALD MARTI, Tax No. 897971, SERGEANT DANIELLE RAIA, Tax No. 924370, LIEUTENANT ROBERT SEAMEN, Tax No. 907311, CAPTAIN JOHN HALL, Tax No. 877764 and THE CITY OF NEW YORK, as follows:

FIRST CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages from the individual defendants;

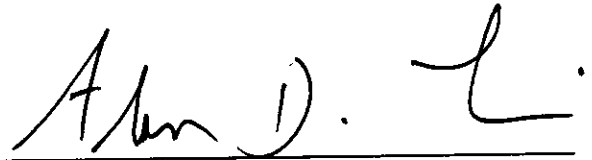
SECOND CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages from defendant DOUMAS;

THIRD CAUSE OF ACTION: One Million (\$1,000,000.00) Dollars and demands an additional One Million (\$1,000,000.00) Dollars as punitive damages from defendant DOUMAS;

FOURTH CAUSE OF ACTION: Seven Thousand, Five Hundred (\$7,500.00) Dollars.

In addition, plaintiff demands the costs and disbursements of this action, including his attorney's fees, pursuant to 42 U.S.C. §1988.

Dated: Kew Gardens, New York
July 7, 2009

A handwritten signature in black ink, appearing to read "Alan D. Levine", is positioned above a horizontal line.

ALAN D. LEVINE, ESQ.

Attorney for Plaintiff

80-02 Kew Gardens Road, Suite 1010

Kew Gardens, New York 11415

718-793-6363

File No: 2096